

**UNITED STATES INTERNATIONAL TRADE COMMISSION
WASHINGTON, D.C.**

**In the Matter Of
CERTAIN DYNAMIC RANDOM ACCESS
MEMORY (DRAM) DEVICES, PRODUCTS
CONTAINING THE SAME, AND
COMPONENTS THEREOF (III)**

**Investigation No. 337-TA-_____
(Docket No. 3930)**

**PUBLIC INTEREST STATEMENT OF PROPOSED RESPONDENTS
MICRON TECHNOLOGY, INC. & MICRON SEMICONDUCTOR PRODUCTS, INC.**

Proposed Respondents Micron Technology, Inc. and Micron Semiconductor Products, Inc. (collectively, “Micron”) respectfully request that the Commission deny institution of Netlist’s complaint. Institution and the proposed remedies threaten to harm the public interest by crippling the U.S. economy, increasing threats to national security, undermining the U.S.’s ability to win the global AI race, hampering healthcare advancements, and more. If the Commission institutes, Micron respectfully requests that it delegate public interest to the ALJ and assign OUII to the investigation to help protect against these harms.

I. The Accused Products are used in, and essential to, numerous critical U.S. industries

The Accused Products include Micron’s DDR5 DRAM devices¹ that are “now at the center of the AI hardware ecosystem,” with “AI infrastructure growth . . . expected to continue driving demand” for DDR5 DRAM “for years to come.”² DRAM powers AI and its myriad applications; even Netlist has stated that its alleged “inventions are foundational to the advancement of AI computing.”³ Thus, the Commission consistently delegates public interest in DRAM investigations, including in all prior investigations brought by Netlist.⁴ Continued access to DDR5 DRAM is essential to U.S. AI leadership and other critical industries.

II. Excluding the Accused Products would harm public health, safety, and welfare

Institution and the requested remedial orders would undermine U.S. economic and national security policies. The President, federal agencies across the Executive Branch, and Congress have all taken significant actions to promote domestic semiconductor manufacturing, strengthen supply-chain resilience, support U.S. leadership in AI, and reduce dependence on foreign sources of advanced technologies. Micron’s more than \$250 billion commitment to U.S. semiconductor manufacturing⁵ directly advances

¹ Netlist’s plain language statement vaguely references “components thereof” without further explanation and improperly risks broadly excluding any and all components involved in Micron’s planned U.S.-based DRAM manufacturing, no matter how unrelated to the asserted patents. Micron respectfully requests that the Commission remove “components thereof” if it institutes an investigation.

² <https://www.microchipusa.com/industry-news/ddr5-vs-hbm-memory-technologies-powering-ai-servers>

³ <https://www.prnewswire.com/news-releases/netlist-files-patent-infringement-action-against-micron-in-the-us-international-trade-commission-302849003.html>

⁴ See, e.g., Inv. Nos. 337-TA-1089, 337-TA-1472, and 337-TA-1511. The Commission has also delegated public interest in other DRAM investigations. See, e.g., Inv. Nos. 337-TA-803, 337-TA-1492, and 337-TA-1506.

⁵ <https://investors.micron.com/news/press-release/2026/Micron-Accelerates-U-S--Investments-Pours-First-Concrete-at-New-York-Fab/default.aspx>

those objectives, including those set forth in the CHIPS Act, federal semiconductor manufacturing AI initiatives, and the following Executive Orders:

- Executive Order 14409, June 2, 2026 (“It is the policy of the United States to promote AI innovation and security by working collaboratively with the private sector. . . .”);⁶
- Executive Order 14179, Jan. 23, 2025 (“It is the policy of the United States to sustain and enhance America’s global AI dominance in order to promote human flourishing, economic competitiveness, and national security.”);⁷ and
- Executive Order 14141, Jan. 14, 2025 (“Recent advancements in AI demonstrate its rapidly growing relevance to national security. . . . Advances at the frontier of AI will also have significant implications for United States economic competitiveness.”).⁸

Winning the AI race is critical to U.S. national security, healthcare, and welfare. *See* America’s AI Action Plan (“The United States is in a race to achieve global dominance in [AI]. . . . Winning the AI race will usher in a new golden age of human flourishing, economic competitiveness, and national security for the American people. AI will enable Americans to discover new materials, synthesize new chemicals, manufacture new drugs, and develop new methods to harness energy—an industrial revolution.”).⁹ U.S. policy is also directed toward rebuilding and expanding domestic manufacturing capacity. Policymakers have repeatedly identified reliance on foreign semiconductor supply chains as a strategic vulnerability and have prioritized the onshoring of advanced semiconductor production.

Institution and Netlist’s requested remedies would directly undermine those objectives by threatening Micron’s over \$250 billion investments intended to expand domestic manufacturing capacity, strengthen supply-chain resilience, and reduce U.S. dependence on overseas sources of critical memory technologies. Unlike prior Netlist ITC cases involving foreign memory makers Samsung and SK Hynix, this proposed investigation involves Micron—the “sole U.S.-based manufacturer of advanced memory chips” that is investing hundreds of billions in the U.S. with the goal of “onshoring production of its

⁶ <https://www.whitehouse.gov/presidential-actions/2026/06/promoting-advanced-artificial-intelligence-innovation-and-security/>

⁷ <https://www.federalregister.gov/documents/2025/01/31/2025-02172/removing-barriers-to-american-leadership-in-artificial-intelligence>

⁸ <https://www.federalregister.gov/documents/2025/01/17/2025-01395/advancing-united-states-leadership-in-artificial-intelligence-infrastructure>

⁹ <https://www.whitehouse.gov/wp-content/uploads/2025/07/Americas-AI-Action-Plan.pdf>

advanced DRAM technology” for the first time.¹⁰ Micron’s investments will “creat[e] nearly 100,000 jobs” and “support its long-term goal of producing 40% of its DRAM in the U.S.”¹¹ Netlist’s requested remedies would undermine Micron’s ability to make these investments, and the broad relief Netlist seeks—reaching imported components and materials necessary for U.S. manufacturing—would deter Micron from continuing them. Thus, Netlist’s requested relief would increase U.S. “dependence on foreign supply chains” in Asia, which the U.S. government correctly recognizes as “a significant economic and national security risk.”¹²

The Commission denied remedial relief in *Certain Automatic Crankpin Grinders*, Inv. No. 337-TA-60, USITC Pub. 1022, (Dec. 1979), because a single policy (fuel efficiency) in a single industry (automobiles) threatened public health and welfare. Here, the Accused Products implicate a far broader range of industries and facets of American society—reaching “advanced technologies such as, personal computing, industrial, high-performance compute, automotive, [and] wireless communications”¹³—and warrant even greater scrutiny.

III. The current DRAM-shortage shows that the Accused Products cannot be replaced

Micron is one of three major DRAM manufacturers that together account for over 90% of global supply.¹⁴ Micron’s U.S. supply is growing, but that process takes time.¹⁵ Based on consumer and public reports, U.S. (and global) demand for memory continues to outpace available supply. Removing Micron’s products would worsen the supply constraint because Netlist, SK Hynix, and Samsung lack sufficient capacity to replace Micron’s products. U.S. tech companies “have sounded alarm bells due to a supply-

¹⁰ <https://www.whitehouse.gov/releases/2025/06/micron-announces-massive-chips-investment-onshoring-production/>

¹¹ <https://investors.micron.com/news/press-release/2026/Micron-Accelerates-U-S--Investments-Pours-First-Concrete-at-New-York-Fab/default.aspx>

¹² <https://www.federalregister.gov/documents/2026/01/20/2026-01052/adjusting-imports-of-semiconductors-semiconductor-manufacturing-equipment-and-their-derivative>

¹³ <https://www.commerce.gov/news/press-releases/2024/12/departments-commerce-awards-chips-incentives-micron-idaho-and-new-york>

¹⁴ <https://www.trendforce.com/presscenter/news/20251126-12802.html> (noting the respective market shares of SK Hynix and Samsung at 33.2% and 32.6%, respectively).

¹⁵ <https://investors.micron.com/news/press-release/2026/Micron-Accelerates-U-S--Investments-Pours-First-Concrete-at-New-York-Fab/default.aspx>

demand crunch for memory chips” with the “chip scarcity . . . driving up costs,” “causing a so-called ‘RAMageddon.’”¹⁶ “AI-driven memory and storage growth is outpacing industry supply.”¹⁷

Netlist, SK Hynix, and Samsung have publicly acknowledged these supply shortages even without Micron removed. Netlist’s CEO asserts “the memory market remains structurally undersupplied” and “DRAM capacity remains constrained,”¹⁸ thus creating a “zero-sum game” because “there’s really not too many ways to increase the overall capacity.”¹⁹ SK Hynix’s CEO says “2027 will bring the most severe memory supply crunch the industry has ever seen,” and “forecast[s] that customer demand will remain higher than our supply capacity even beyond 2030.”²⁰ Samsung says skyrocketing AI-fueled demand for DRAM “is projected to keep the market undersupplied.”²¹ Nvidia CEO Jensen Huang²² and SpaceX CEO Elon Musk²³ agree. And, “Samsung and SK Hynix produce a substantial proportion of their memory chips in China,” and are subject to U.S. export restrictions that restrict their ability to “expand capacity” there.²⁴

IV. The Accused Products cannot be replaced within a commercially reasonable time

First, Netlist is primarily a patent assertion entity that cannot replace Micron’s supply.

Second, SK Hynix and Samsung have already purportedly committed much of their existing capacity to customers via “long-term supply agreements” spanning “three to five years.”²⁵ They may not be able to reallocate that capacity to replace excluded articles until after those lengthy contracts expire.

Third, even if switching manufacturers were feasible, doing so would impose significant switching

¹⁶ <https://www.csis.org/analysis/united-states-accelerating-memory-chip-crunch-implications-tech-and-ai-leadership>

¹⁷ <https://d18rn0p25nwr6d.cloudfront.net/CIK-0000723125/fa1d76a5-081f-4fff-a890-2c82f648f4c9.pdf> at 27 (also noting that “accelerated demand for memory and storage at a rate greater than our ability and the industry’s ability to increase supply”).

¹⁸ <https://www.investing.com/news/transcripts/earnings-call-transcript-netlist-q1-2026-beats-expectations-with-robust-revenue-93CH-4681854>

¹⁹ <https://www.insidermonkey.com/blog/netlist-inc-otcnlst-q4-2025-earnings-call-transcript-1708870/>

²⁰ <https://finance.yahoo.com/technology/articles/sk-hynix-ceo-kwak-noh-121150974.html>

²¹ <https://news.samsung.com/global/samsung-electronics-announces-second-quarter-2026-results>

²² <https://www.reuters.com/world/asia-pacific/sk-hynix-ceo-sees-worst-ever-memory-supply-shortage-2027-says-demand-outstrip-2026-07-10/> (predicting that “shortages of AI memory would continue for several years”).

²³ <https://en.sedaily.com/international/2026/08/05/musk-warns-memory-shortage-to-persist-prices-to-keep-rising> (noting that “the supply shortage will continue” and “will not be easily resolved”).

²⁴ <https://www.silicon.co.uk/e-regulation/samsung-sk-hynix-china-626500>

²⁵ <https://www.trendforce.com/news/2026/04/09/news-from-annual-deals-to-3-5-year-ltas-samsung-and-sk-hynix-reportedly-reset-big-tech-memory-contracts/>

costs and delays in certain, critical industries, as Netlist itself admits.²⁶ Third-party publications concur, noting that changing manufacturers “can trigger revalidation, requalification or regulatory review” that can be “especially costly” for “medical, military, test and measurement, and industrial systems”²⁷—i.e., the very downstream applications that historically have raised the greatest public interest concerns.

Fourth, new capacity cannot be built quickly: “[b]uilding a semiconductor fab is one of the most complex and expensive construction projects in the world,” typically requiring “3 to 5 years from groundbreaking to first production”—“[d]elays and cost overruns are common.”²⁸

V. The requested remedial orders would harm U.S. consumers

The requested remedial orders would have cascading and potentially devastating effects that would reverberate across the economy—from supply chains to hospitals. For example, the requested orders would worsen the supply constraints and perpetuate the unprecedented price hikes that have reached record levels. Just this week, a report indicated that “DDR5 memory prices have exploded over the last trimester, with triple and, in some cases, quadruple increases. For instance, a conventional 32GB (2x16GB) DDR5 memory kit sold for around \$100 to \$200 in October 2025, but the same kit now starts at \$350, if it’s even in stock.”²⁹

CONCLUSION

These unprecedented times warrant unprecedented action. Institution should be denied as it alone would undermine the Administration’s emphatic support of Micron’s critical contributions to the important U.S. public interest issues discussed above.³⁰ If, nevertheless, the Commission institutes, it should exclude “components thereof” from the investigation and delegate public interest.

²⁶ <https://www.sec.gov/Archives/edgar/data/1282631/000110465926032152/nlst-20251227x10k.htm> (admitting that “the lead time needed to establish a relationship with a new design or manufacturing partner is substantial, and the time for our OEM customers to re-qualify our products with components from a new vendor is also significant”).

²⁷ <https://www.avnet.com/americas/resources/article/memory-is-breaking-product-plans/>

²⁸ <https://www.irecruit.co/insights/semiconductor-fab-construction-owners-schedule-cost-reality>

²⁹ <https://www.tomshardware.com/pc-components/ram/ram-price-index-2026-lowest-price-on-ddr5-and-ddr4-memory-of-all-capacities>, last updated August 17, 2026.

³⁰ Netlist’s claim that it needs the requested remedial orders to obtain “effective relief” from Micron’s “ongoing infringement” as an “adjudicated infringer” is a legally irrelevant red herring. The cited case, No. 2:22-cv-00294, is an unrelated case involving different patents, as confirmed by its absence from the “Related Litigations” section of the Complaint. *See* Complaint at 53–57.

Dated: August 22, 2026

Respectfully submitted,

/s/ Ryan B. McCrum

Ryan B. McCrum

JONES DAY

901 Lakeside Ave E.

Cleveland, OH 44114

Telephone: (216) 879-3939

rbmccrum@jonesday.com

*Counsel for Respondents Micron
Technology, Inc. and Micron
Semiconductor Products, Inc.*